

25STLC02921 25STLC02921

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-01

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Case Number: 25STLC02921 Hearing Date: July 1, 2026 Dept: 26

TENTATIVE

RULING:

Motion of Plaintiff Scott Jacoby, Trustee of the Lare Ocean

Blvd. Trust for Order Re-Assigning this Action to Department 12, the Honorable

Barbara A. Meiers, is placed off calendar.

Order to Show Cause Re: Failure to File Proof of Service of

the Summons and Complaint is scheduled for 07/15/2026 at 9:30 am in Department

26 at the Spring Street Courthouse.

Order to Show Cause Re: Reassignment of Action to Unlimited

Civil Court is scheduled for 07/15/2026 at 9:30 am in Department 26 at the

Spring Street Courthouse.

Analysis:

Plaintiff Scott Jacoby, Trustee of the Lare Ocean Blvd.

Trust ("Plaintiff") filed the instant action for "ejectment" against Defendant

Anthony Felix, Jr. ("Defendant") on April 8,

2026. Proof of Service of the Summons and Complaint, which appears to have been improperly attempted by first-class mail, was filed on March 19, 2026.

On April 14, 2026, Plaintiff filed the instant Motion for

Order Re-Assigning this Action to Department 12, the Honorable Barbara A.

Meiers.

Discussion

Plaintiff moves for an order relating this action to unlawful detainer and quiet title actions, Case Nos. 22STCV07491, BC722193 and 22LBUD0045, and re-assigning this action for all purposes to Department 12, the Honorable Barbara A. Meiers, the judicial officer who presided over both the unlawful detainer and the quiet title actions. The Motion is brought pursuant to California Rules of Court, rule 3.300 and Los Angeles Superior Court, rule 3.3(f).

Neither of these rules supports the relief requested. Instead, they articulate a particular procedural mechanism to relate cases, with which Plaintiff has not complied.

California Rules of Court, rule 3.300 defines a “related case” and mandates that a party that knows of related proceedings must serve and file a Notice of Related Case in all pending cases listed in the notice, within 15 days of learning of the facts concerning the related cases. (Cal. Rules of Court, rule 3.300(b)-(e).) Once the Notice of Related Case is filed, if “the cases listed in the notice include both unlimited and limited civil cases, the judge who has the earliest filed unlimited civil case must determine whether the cases should be ordered related and assigned to his or her department.” (Cal. Rules of Court, rule (h)(1)(B).) Plaintiff has not filed a Notice of Related Case in the instant action, despite knowing of the other cases at the time this action was filed in April 2025.

Los Angeles Superior Court, rule 3.3(f) provides that if, after filing the Notice of Related Case, the judge designated in California Rules of Court, rule 3.300 does not order the cases related, the party may file a motion to have the cases related in Department 1. (LASC Rules, rule 3.3(f)((3).) Given that no Notice of Related Case has been filed in this action and the ones Plaintiff contends are related, the triggering event for the filing of a motion to have the cases related has not yet occurred. Furthermore, such a motion would have to be heard in Department 1.

Based on the foregoing, the Court takes the instant Motion for Order Re-Assigning this Action to Department 12, the Honorable Barbara A. Meiers off calendar as premature and as scheduled in the wrong department.

Additionally, the Court sets an Order to Show Cause regarding whether an action for ejectment is within the jurisdiction of the

Limited Civil Court, under Code of Civil Procedure sections 85, 86, and 580(b). Specifically, an action for “[a] determination of title to real property” may not be heard in a limited civil court. (Code Civ. Proc., § 580(b)(3).)

The Court also sets an Order to Show Cause re: Proof of Service. The Proof of Mailing filed

March 19, 2026 is on a form that states it is NOT to be used to establish proof of service of the summons and complaint and does not establish the requirements for substitute service.

Conclusion

Motion of Plaintiff Scott Jacoby, Trustee of the Lare Ocean Blvd. Trust for Order Re-Assigning Action for Department 12, the Honorable Barbara A. Meiers, is placed off calendar.

Order to Show Cause Re: Failure to File Proof of Service of the Summons and Complaint is scheduled for 07/15/2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Order to Show Cause Re: Reassignment of Action to Unlimited Civil Court is scheduled for 07/15/2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Moving party to give notice.